



Families First Child Care

Policy 23.22

Effective: December 01, 2023

Introduction

The Tennessee Department of Human Services offers Child Care Payment Assistance as a support service for Families First and Diversion customers who are participating in a work and/or educational activity.

Scope

The success of Families First in supporting the goal of self-sufficiency for its customers is dependent on the existence of affordable, accessible, quality child care that provides for a child's well-being and development. This is also central to a parent's ability to participate in all work and/or educational activities within the Personal Responsibility Plan.

Policy

Types of Child Care Payment Assistance

The following types of Child Care Payment Assistance are available to families receiving or transitioning from Families First:

1. Families First Child Care Payment Assistance pays up to the maximum established reimbursement rate for child care while the Families First caretaker participates in work, education, and training activities. This child care includes the caretaker's travel time to and from these activities.
2. Diversion Child Care is available to Families First customers who select the Diversion path. See policy [23.23 Families First Diversion Payments](#).
3. Transitional Child Care (TCC) is potentially available for eighteen (18) months from the date the Families First cash assistance stops. See policy [11.18 Transitional Child Care Payment Assistance](#).

4. At-Risk Child-Only (ARCO) is for Families First child-only caretakers who meet Transitional Child Care policy guidelines. See policy [11.17 At-Risk Child Care for Child Only Parent/Guardians](#).

Child Care Eligibility Criteria

1. Certain eligibility criteria determine which children receive child care services. See policy [11.18 Transitional Child Care Payment Assistance](#) for certificate eligibility criteria.
2. Child care payments will not be made to the following:
 - a. The child's parent, step-parent, guardian, or any member of the assistance unit (AU).
 - b. Persons or agencies found guilty of, or validated as, child abuse perpetrators.
3. The caretaker relative has certain choices regarding how child care is paid and to whom. The caretaker may choose Licensed Care or Authorized Child Care Professionals.
4. Child care may not be provided in the child's home, unless it is also the agency/professional's residence. An exception may be granted by the Department on a case by case basis.
5. Child care is provided in units of care based on the number of hours for which child care is needed per week, i.e., full-time, part-time, or extended time as outlined in policy [11.33 Establishing Hours of Need for Child Care](#).
6. A minor parent, who is an eligible child in their parent's AU and has signed a Personal Responsibility Plan (PRP), will also receive Families First Child Care Payment Assistance if the child care is required for them to fulfill the obligations on the PRP.

Child Care Disregard

Families First caretakers who are employed or in a work and/or educational activity and need assistance with child care have two options:

1. Child Care Payment Assistance paid by TDHS directly to the agency/professional, or
2. A child care deduction used in the Families First budget for the cost of care.

The Tennessee Department of Human Services (TDHS) eligibility counselor will explain these options to the caretaker and determine which method of meeting child care expenses is to the caretaker's advantage. The maximum child care disregard per child can be found on the Family Assistance Standards Desk Guide.

The disregard cannot be given in the same month that Child Care Payment Assistance is paid by TDHS. If the caretaker has received a disregard, Child Care Payment Assistance will begin the month following the removal of the disregard.

Families First Child Care Payment Assistance

1. In order to receive Child Care Payment Assistance, child care must be necessary for the caretaker to participate in work and/or education activities.
 - a. Child Care Payment Assistance is not provided if the caretaker can arrange for free care.

- b. Child Care Payment Assistance will not be given to a two (2) parent family if one (1) parent is able and appropriate to provide care in the home.
 - c. Child Care will not be provided to a minor parent who is an eligible child if the minor's parent is able to provide the care.
2. Child Care Payment Assistance is available, if needed, on the first day of participation in an activity, employment, or while the parent or caretaker attends Family Focused Solutions (FFS) assessment.
3. Child Care Payment Assistance is potentially available for all adults if they are in a work and/or education activity, and/or while a parent is in a drug/alcohol or mental health treatment program.
 - a. If the adult is exempt from the work requirements, he/she may still be able to receive Child Care Payment Assistance if he/she volunteers for a work activity or agrees to FFS assessment.
 - b. Child-only caretakers, ineligible non-citizens, and SSI recipients are unable to volunteer.
4. Child Care Payment Assistance cannot be provided prior to the approval for Families First. Child Care Payment Assistance will be available to the caretaker when participating in an activity during the required ten (10) day compliance period to cure a sanction.
5. Families First caretakers who are non-compliant with their work and/or educational activity will be phased out with ninety (90) days of Child Care Payment Assistance.
 - If the caretaker makes contact, either during the conciliation period or within ten (10) calendar days of adverse action and is determined to have had good cause for the non-compliance situation, the Eligibility Counselor will reinstate the original twelve (12) month Child Care Payment Assistance certificate.
6. If a Families First case is closed for any reason other than non-compliance with the work and/or educational activity, the AU will receive the remainder of the original twelve (12) month certificate.
7. At the time of Families First approval, Child Care Payment Assistance may be provided back to the date of application for the time that the caretaker was working a minimum of thirty (30) hours and the approved provider has not already been paid for services.

Supporting Documents

[HS-2883 Parent Application to Choose Authorized Child Care Professional](#)

[HS-2883sp Parent Application to Choose Authorized Child Care Professional \(SPANISH\)](#)

[HS-3272 Parent Advance Notification Letter](#)

Child Care Certificate (generated by TCCMS)

[11.18 Transitional Child Care](#)

[11.17 At-Risk Child Care for Child-Only Parent/Guardians](#)

[23.23 Families First Diversion Payments](#)

[Child Care Resources for Parents](#)

[The Governor's Books from Birth Foundation enrollment](#)

Definitions/Acronyms

Term	Definition
ARCO	At-Risk Child-Only
Authorized Child Care Professionals	An unlicensed individual, typically a friend or relative, who meets health and safety guidelines as defined by the Child Care Development Block Grant, is at least twenty-one (21) years of age, and who provides care for no more than four (4) children unrelated to them outside the child's home.
Family Focused Solutions	Family Focused Solutions (FFS) is a voluntary support service that is provided by agencies who are contracted with TDHS. The purpose of FFS is to assist and support TANF customers with education and employment opportunities.
Licensed Care	A Child Care Program which is subject to licensure by the Department of Human Services, or approval requirements by the Department of Education. In addition, certain Boys and Girls clubs that meet the definition of a child care agency are exempt from licensing requirements per Tenn. Code Ann. § 71-3-503 and are included in this definition.
PRP	Personal Responsibility Plan
TCC	Transitional Child Care
TDHS	Tennessee Department of Human Services

Supersedes

Policy 23.25 Families First Child Care, eff. date 10/31/2016.

Authority

Tenn. Comp & Regs. 1240-1-54 and 1240-01-49-.09(5)

Application

All TDHS Family Assistance Staff and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
11/16/2023	12/01/2023	Introduction, Scope, Policy Section, and Definitions/Acronyms	Updated language for clarity, deleted no longer applicable sections, removed procedural steps, and added Definitions and Acronyms.
10/21/2016	10/31/2016	N/A	New Policy

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Clarence H. Carter	Commissioner	11/16/2023	12/01/2023
Charles Bryson	Assistant Commissioner	10/21/2016	10/31/2016

Current Approver